

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

DOCKET NO. 25-24

Served August 27, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S SECOND MOTION TO COMPEL DISCOVERY

This matter came on for consideration of Complainant Southern International Co., Ltd.’s Expedited Motion to Compel Responses to Second Written Discovery and for Limited Relief and Exhibits A through E filed August 18, 2026 (Dkt. 51); and Respondent Daynamez Group of Companies LLC’s Response to Motion to Compel Discovery filed August 25, 2026.

For the reasons set forth below, Complainant’s motion is **GRANTED IN PART AND DENIED IN PART**. Respondent is directed to respond to Complainant’s second set of interrogatories, second requests for production, and second requests for admission attached as Exhibits A, B, and C to Complainant’s motion to compel no later than **September 8, 2026**. As Respondent failed to establish good cause for its failure to respond timely to Complainant’s second set of discovery, its objections are **WAIVED**. Respondent is directed to show cause no later than **September 8, 2026**, as to why Complainant’s second request for admissions attached as Exhibit C to Complainant’s motion to compel should not be deemed admitted for failure to timely respond. Complainant’s request for expedited relief is **DENIED** and the scheduling order is **MODIFIED** as set forth below to accommodate the need for discovery beyond the current deadlines.

I. Background.

On January 23, 2026, Complaint filed a second amended complaint and exhibits alleging Respondent violated 46 U.S.C. §§ 40901, 40902, and 41102(c). Complainant alleges these violations arose from Respondent’s operating as a non-vessel-operating common carrier without a license, failure to remit payment to relevant carriers for the shipment of 558 containers contracted by Complainant, repeated misappropriation of funds, and other acts or omission by Respondent. (Dkt. 18.)

On March 27, 2023, Respondent filed an answer and counterclaim. Respondent’s answer denies the claims alleged in the amended complaint and asserts affirmative defenses. Respondent’s counterclaim includes two counts: Count I - indemnification and

hold harmless, and violation of 46 U.S.C. § 41102(a) for not maintaining proper practices relating to the handling and receiving of cargo due to its failure to properly handle the cargo by letting it become abandoned; and Count II - breach of contract for failure to pay Daymanez and violation of 46 U.S.C. § 41102(a). (Dkt. 24.)

II. Relevant Law

In Commission proceedings, parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense – including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. 46 C.F.R. § 502.141(e)(1). For good cause, the presiding officer may order discovery of any matter relevant to the subject matter involved in the action. Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence. *Id.*

On motion to compel discovery, the party from whom discovery is sought must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the presiding officer may nonetheless order discovery from such sources if the requesting party shows good cause. The presiding officer may specify conditions for the discovery. 46 C.F.R. § 502.141(e)(2)(i).

Discovery may be limited where it is unreasonably cumulative or duplicative, or where the burden or expense of the proposed discovery outweighs its likely benefit considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues. 46 C.F.R. §§ 502.141(e)(2)(A) and (C). Interrogatories are limited to 50, including all discrete subparts. 46 C.F.R. § 502.145(a). Objections to interrogatories must be stated with specificity. 46 C.F.R. § 502.145(b)(4).

A party may file a motion to compel answers to interrogatories or document requests, and the motion must include: a certification that the moving party has conferred in good faith in an effort to obtain compliance without the need for a motion, a copy of the disputed requests, a copy of any answer provided, the certificate of service that accompanied the discovery requests, and any supporting argument. 46 C.F.R. § 502.150(a)(2). Complainant's motion to compel satisfies these requirements.

III. Argument of the Parties

A. Complainant

Complainant asserts that it served Respondent with a second set of written discovery on July 14, 2026, that included the interrogatories, requests for production, and requests for admission attached as Exhibits A, B, and C to its motion to compel discovery. Complainant states that it has received no answer, response or objection to the second set of discovery and that the applicable 30-day response period expired on August 13, 2026.

Complainant asserts that on August 15, 2026, it made a good faith effort to resolve the dispute in accordance with 46 C.F.R. §§ 502.71(a) and 502.150(a)(2)(i) by sending an email to Respondent's counsel and representative identifying the anticipated motion, the relief it would seek, and the specific issues that could narrow or avoid motion practice. Complainant states that it requested a substantive response by 5:00 p.m. Eastern Daylight Time on Monday, August 17, 2026, but has received none. A copy of the email is attached as Exhibit E to the pending motion to compel. (Motion at 2.)

Complainant asserts that its second set of discovery seeks information concerning Respondent's business email accounts, its contentions regarding its role, downstream service and payment relationships, identified payment transactions, accounting records, and operational processes. (Motion at 2.)

Complainant argues that its second set of discovery requests are material and seek information related to Respondent's asserted operational role, its relationships with downstream transportation and service entities, the receipt and disposition of Complainant's funds, cargo-release communications, and Respondent's defenses to the claims at issue. (Motion at 3.)

Complainant argues that it complied with the interrogatory limit of 50 pursuant to 46 C.F.R. § 502.145(a) because its second set is numbered 26 to 45 and sequential to the first set numbered 1 to 25, and does not include subparts with an independent line of inquiry. (Motion at 5.)

Complainant argues that its second request for production of documents does not duplicate its earlier request and specifies that documents responsive to the first request need not be produced if identified by Bates range. (Motion at 3.)

Complainant argues that its second requests for admission are directed to discrete factual propositions, many of which relate to communications or transaction records. (Motion at 3.)

Complainant seeks entry of an order compelling discovery, argues that Respondent waived any objection by not timely responding without good cause, and argues that the second requests for admission are deemed admitted absent an order by the presiding officer. (Motion at 3.)

Complainant requests expedited relief on the ground that discovery deadline is August 24, 2026, under the current scheduling order. (Dkt. 33.) (Motion at 2.)

B. Respondent

Respondent argues that Complainant has served a massive amount of discovery in a blatant attempt to force Respondent's small company out of business. Respondent argues that the amount of discovery has created a hardship.

Respondent argues that Complainant has propounded 48 new requests for production and that most of them consists of multiple requests, citing Request No. 36 as an example.

Respondent argues that the new requests for admission number 110, which is abusive and unduly burdensome.

Respondent argues that Complainant has propounded 48 interrogatories and that most of them consists of multiple requests, citing Interrogatory No. 25 as an example.

Respondent argues that the total number of interrogatories exceed the limit of 50 set forth in 46 C.F.R. § 502.145(a).

Respondent argues that Complainant admits that it owes Respondent \$149,990 that is being claimed as a setoff, and that this logically necessitates a finding that Complainant's allegations cannot be true. It suggests that a finding that money is owed should be made before determining the necessity of discovery.

Respondent argues that Complainant's request for details regarding the 525 shipments at issue are overly broad and unduly burdensome.

Respondent argues that it should be accorded protection from this harassment, and requests that the motion be denied.

IV. Discussion

As an initial matter, Complainant's request for expedited relief shall be denied on the ground it has been rendered moot by the fact that the discovery deadline expired on August 24, 2026. Although I directed an email to be sent to the parties on August 18, 2026, shortening the deadline to respond to the motion to 6 p.m. on August 19, 2026, the request delivery receipt response from Respondent indicated that it was not received by the destination server. Accordingly, due process required that Respondent be accorded the generally applicable 7-day response period to respond. Because the current scheduling deadline is no longer adequate, it will be modified as set forth below.

Pursuant to 46 C.F.R. §§ 502.145(b)(2), 502.146(b)(2), and 502.147(a), Respondent was required to serve its answers and any objections to the second set of discovery within 30 days of service of the interrogatories, requests for production, and requests for admission, respectively.

Pursuant to 46 C.F.R. § 502.147(a)(3), requests for admission are deemed admitted when a party fails to timely respond unless stipulated by the parties or ordered by the presiding officer.

Federal discovery practice generally treats untimely discovery objections as waived absent an adequate justification, while recognizing that exceptional legal protections may still control. *See In re United States*, 864 F.2d 1153, 1156 (5th Cir. 1989).

Interrogatories "requesting 'every fact' in support of a party's legal contentions are generally considered to be overly broad and unduly burdensome. A more reasonable request would be limited to the identification of the material or principle facts and documents supporting the legal contentions." *Odyssea Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Auth.*, Docket No. 02-08, 29 S.R.R. 1392, 1394 (ALJ Dec. 12, 2002) (citations omitted); *see also Hiskett v. Wal-Mart Stores, Inc.*, 180 F.R.D. 403, 404-405 (D. Kan. June 19, 1998). When

responding to an interrogatory by identifying the records from which the answer may be derived or ascertained, “the records must be specified “in sufficient detail to permit the interrogating party to locate and identify, as readily as the party served, the records from which the answer may be obtained.” *Rainbow Pioneer # 44-18-04A, Haw.-Nev. Inv. Corp.*, 711 F.2d 902, 906 (9th Cir. June 13, 1983).

In analyzing whether the numerical limit on interrogatories has been exceeded under FED. R. CIV. P. 33(a), courts have applied a substance over form approach in analyzing whether subparts are considered part of one question or should be counted separately. Thus, subparts directed at eliciting details concerning a common theme should be considered a single question, but subparts inquiring into discrete areas are more likely to be counted as more than one question for purposes of the limitation. *Safeco of America v. Rawstron*, 181 F.R.D. 441, 443-44 (C.D. Cal. 1998) (citing Advisory Committee Note, 146 F.R.D. at 675-76; 8A Charles A. Wright, Arthur R. Miller & Richard L. Marcus, *Federal Practice and Procedure* § 2168.1, at 261 (2d ed. 1994)); *Kendall v. GES Exposition Services, Inc.*, 174 F.R.D. 684, 685-86 (D. Nev. 1997.)

In this case, Respondent failed to respond timely or object to Complainant’s second set of written discovery without providing any reasonable explanation for its failure to do so. Rather, Respondent offers only unsupported allegations that Complainant’s discovery was served with an improper motive to harass and put Respondent out of business. Similarly, Respondent argues that the volume of discovery served is burdensome without providing details to establish that the burden is not proportional to the needs of the case as set forth in FED. R. CIV. 26(b)(1). Respondent has not quantified the number of potentially responsive documents or estimated the cost that it would incur in responding to the request. Respondent’s generic objection does not establish a good cause basis to support a finding that it would incur a burden beyond that which naturally results from asserting claims and defenses in litigation.

46 C.F.R § 502.145(b)(4) provides that any ground for objecting to an interrogatory not stated is waived unless the presiding officer for good cause excuses the failure. Because Respondent has not offered any reasonable explanation for its failure to respond to Complainant’s second set of interrogatories, I find that it has not established good cause. Accordingly, its objections to the second set of interrogatories are waived.

Respondent failed to respond to the second requests for production and second requests admission within thirty days in accordance with 46 C.F.R. §§ 502.146(b)(2) and 502.147(a), and has not established good cause for its failure to act timely. Accordingly, I find that its objections to both have been waived in accordance with the rationale set forth in *In re United States*, 864 F.2d 1153, 1156 (5th Cir. 1989).

Respondent failed to respond to the second requests for admission within 30 days in accordance with 46 C.F.R. § 502.147(a)(3). Accordingly, Respondent is directed to show cause no later than September 8, 2026, why the requests for admission should not be deemed admitted.

Notwithstanding that Respondent waived its objections by failing to act timely without good cause, I would not find its arguments to be persuasive with respect to the two examples cited in support of its opposition to the motion to compel, namely Request No. 36 and Interrogatory No. 25.

With respect to Request No. 36, Respondent argues that it is objectionable because it contains multiple requests in one request. Request No. 36 states:

REQUEST FOR PRODUCTION NO. 36

Produce Documents sufficient to identify the full legal name and principal business address of the entity Daynamez identified as “Pacific Logistics and Trading,” and to show the nature and scope of Daynamez’s relationship with that entity concerning the Shipments at Issue. Also produce existing agreements or engagement records, invoices, payment instructions, remittance records, bank-generated confirmations, and accounting entries supporting each payment Daynamez contends it made to that entity in connection with the Shipments at Issue.

Request No. 36 seeks documents relevant to the claim that Respondent failed to remit payment to relevant carriers for the shipment of 558 containers contracted by Complainant. Respondent has not identified the size of potentially responsive documents and therefore has not established that the request is unduly burdensome. Exhibit B to the motion to compel shows that Complainant has propounded a total of 48 requests for production in discovery, an amount that is not unusual in litigation. Moreover, there is no limit on the number of documents that may be requested under the applicable regulations. Accordingly, I find that Respondent’s objection is not well founded.

With respect to Interrogatory No. 25, Respondent argues that it is objectionable because there are a total of 48 interrogatories and most contain multiple requests in one request, thereby exceeding the limit of 50. Interrogatory No. 25 states:

INTERROGATORY NO. 25

State all material facts supporting Daynamez’s contention that it was not required to hold an ocean transportation intermediary license or furnish proof of financial responsibility under 46 U.S.C. §§ 40901 and 40902 and the applicable FMC regulations for the services it performed concerning the Shipments at Issue. Identify each statutory or regulatory exception on which Daynamez relies and, if Daynamez relies on a disclosed-agent theory, identify the principal for whom it acted and state how that agency relationship was disclosed to SIC.

Interrogatory No. 25 seeks all material facts in support of a specific contention by Respondent, which is relevant and sufficiently narrow to not be overly broad. I find that the subparts to the interrogatory are directed at eliciting details concerning a common theme should be considered a single question. Accordingly, I find that the interrogatory only constitutes one question in accordance with the rationale set forth in *Safeco of America v. Rawstron*, 181 F.R.D. 441, 443-44 (C.D. Cal. 1998).

Respondent’s argument that Complainant’s discovery requests are impermissible based on its allegation that Complainant admits to owing it money is not persuasive. As set forth above, the parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party’s claim or defense – including the existence, description, nature, custody, condition,

and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. 46 C.F.R. § 502.141(e)(1). The fact that Respondent may be entitled to a set off does not prevent Complainant from conducting discovery in support of its claim of a violation of the Shipping Act.

V. Order

For the reasons set forth above, the motion is **GRANTED IN PART**, it is further

ORDERED that Respondent is directed to respond to Complainant's second set of interrogatories, requests for productions, and requests for admission attached as Exhibits A, B, and C to Complainant's motion to compel no later than **September 8, 2026**, it is further

ORDERED that Respondent's objections to the second discovery requests are **WAIVED** due to its failure to establish good cause for not timely responding, it is further

ORDERED that Respondent is directed to show cause no later than **September 8, 2026**, as to why Complainant's second requests for admission attached as Exhibit C to Complainant's motion to compel should not be deemed admitted for failure to timely respond, it is further

ORDERED that Respondent is advised that failure to comply with the terms of this order may result in the imposition of sanctions including but not limited to the imposition of an adverse inference, deeming facts established, striking pleadings, waiver of claims and defenses, and entry of default judgment, it is further

ORDERED that Complainant's request for expedited relief is **DENIED** and the scheduling order is **MODIFIED** as set forth below to accommodate the need for discovery beyond the current deadlines, it is further

ORDERED that the parties are directed to comply with the following scheduling deadlines

October 23, 2026	Close of all Discovery
November 23, 2026	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix
December 23, 2026	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
January 15, 2027	Complainant's Reply Brief and Responses to Proposed Findings of Fact

Issued: August 27, 2026


Mary Apostolakos Hervey
Administrative Law Judge